IN THE HIGH COURT OF ORISSA AT CUTTACK
WPC(OA) No.1499 of 2015

In the matter of an application under Articles 226 and 227 of the Constitution of India.

Monalisa Pattnaik .... ***Petitioner***

-versus-

State of Orissa and Ors. .... ***Opposite Parties***

Advocates appeared in the case through Hybrid Mode**:**

For Petitioner : *Mr. Manoj Kumar Khuntia, Adv.*

For Opposite Parties. : *Mr. H.K. Panigrahi, ASC*

CORAM:
DR. JUSTICE S.K. PANIGRAHI

DATE OF HEARING:-20.04.2023
DATE OF JUDGMENT: -03.07.2023

Dr. S.K. Panigrahi, J.

1. In this Petition, the Petitioner has made a prayer to quash the selection of the Opposite Party No.4 (Rachita Pradhan) and to direct the Opposite Parties/ State to appoint her as contract Classical Teacher in the district of Khurda.

I. FACTS OF THE CASE:

2. The facts of the case, in brief, are that the Opposite Party No.2/ Director, Secondary Education, Odisha, Bhubaneswar invited application from eligible candidates belonging to different

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revenue districts from the State for engagement of qualified teacher on contractual basis in different Government High Schools. The Petitioner being an eligible candidate has applied in respect of Khurdha district against the post of Classical Teacher.

3. A resolution was issued by the Opposite Party No.1/ Secretary, School and Mass Education Department, Odisha, Bhubaneswar prescribing the recruitment procedure of teaching staff in Government secondary schools. As per Clause-1 of the resolution in order to be eligible for engagement a candidate must satisfy the following conditions:

> (a) *He/She must be a citizen of India,*
>
> *(b) (i) He/ She must have passed the High School Certificate or an equivalent or any higher examination with Oriya as a language subject, or*
>
> *(ii) He/ She must have Oriya as a medium of examination in non-language subject at the High School Certificate or equivalent examination, which He/ She has passed.*
>
> *(c) Candidates having Bachelor degree in Arts/ Commerce/ Science with Bachelor degree in Education from any Universities of the State or its equivalency are eligible. Regarding Universities/ Institutions of outside State, the candidates shall only be eligible for engagement after verification of genuineness of their educational/ training qualification from concerned University/ institutions from which they have obtained the degree by the concerned DEO.*

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(d) Such outside University/ Institution candidates shall have to produce the authenticated proof of equivalency and NCTE recognition in support of their qualification at the time of verification failing which they will not be eligible in the selection process.

(e) The case of PH candidates shall be referred to Appellate Medical Board constituted by the W & CD Department vide Notification No.16430/WCD Date 06.09.2011 for re-examination. Engagement order shall be issued if such candidates are found genuine by the Board.

Clause-2 of the said Resolution prescribes as follows:

> *"2. Age- Candidates shall be under 32 years of age and above 21 years of age as on 30.09.2014. However, in case of SC/ST, Women, OBC/SEBC, ex-military persons, the upperage shall be relaxed by 5 years and in case of PH candidates the upper age shall be relaxed by 10 years. This is done in conformity with G.A. Deptt. Notification No.-33068/ Gen. Dtd.27.10.1989 (Odisha Civil Service, fixation of Upper Age Limit Rules, 1989) and SEBC Act."*

Educational qualification for Classical Teacher (Sanskrit) prescribed in Clause-3(c) of the said Resolution are as follows:

> *"3. Educational Qualification*
> *Xx xx xx xx*
> *(c) Bachelors Degree with Sanskrit as one of the optional/Hons subject from a recognized University with minimum 50% marks in aggregate (45% for SC/ST/PH/OBC/SEBC Candidates) with Sikshaya Shastri (Sanskrit) (a course prescribed by NCTE) from a recognized university/institution recognized by NCTE and affiliated to a recognized university* ***or***

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Shastri (Sanskrit) with minimum 50% marks in aggregrate (45% for SC/ST/PH/OBC/SEBC Candidates) from recognized university and Sikshaya Shastri (Sanskrit) (a course prescribed by NCTE) from a recognized university/ institution recognized by NCTE and affiliated to a recognized university or Acharya (Except Jyotisacharya and Ayurvedacharya) or Sahityacharya with minimum 50% marks in aggregate from a recognized university or Bachelor's degree with Sanskrit as one of the optional/Hons subject from a recognized University with minimum 50% marks in aggregate (45%for SC/ST/PH/OBC/SEBC Candidates) and M.A in Sanskrit with minimum 50% marks in aggregate from a recognized University. (The untrained candidates shall have to undergo required training within the timeline as prescribed by the Government)."

The committee for selection shall be constituted under the chairmanship of Collector. A merit list shall be prepared on the basis of the percentage of the marks secured in HSC Examination (without 4th optional) BA/B.Sc/BCOM. and B.Ed. examination in case of TG Arts and Science and in case of Sanskrit, Hindi, Telugu, Urdu and PET Teachers, the percentage of marks secured by a candidate in each qualifying examination. In case two or more candidates secure the same marks, the candidates older in age will be placed above in the merit list. A merit list with equal number of vacancies shall be drawn for each category of the posts. The concerned District Education Officer after approval of the Collector shall engage candidates

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on contract basis out of the merit list prepared under intimation to the Director, Secondary Education and the Government of Odisha in School and Mass Education Department. Accordingly advertisement was issued for filling up different posts in different districts of the State. Further a corrigendum was issued on 06.01.2015 prescribing the recruitment procedure of teaching staff in Government Secondary Schools.

4. Pursuant to the said advertisement the Petitioner along with other candidates applied to be considered for the post of Classical Teacher in respect of Khurda district against 21 vacancies of different categories. On the basis of the marks, a common merit was prepared where the name of the Petitioner finds place at serial No.682. From the said list, it would be evident that the Petitioner has secured 268.0806 marks. Thereafter, a provisional select list for the post of classical teacher in respect of Khurda district was published wherein names of 17 candidates finds place against 21 vacancies. It is pertinent to mention here that out 21 vacancies, 11 posts meant for UR, 2 posts for SEBC, 3 post for SC and 5 posts for ST candidates. It would be evident from the select list that candidates securing less mark than the petitioner have been selected whereas the petitioner has not been selected. When it is the admitted fact that Opposite Party No.4 securing less mark than the Petitioner has been selected, the Petitioner deserves

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selection for the aforesaid post. Non-consideration of the Petitioner's case for engagement as Classical Teacher is illegal and arbitrary. Therefore, the Petitioner is constrained to approach this Court.

II. SUBMISSIONS ADVANCED ON BEHALF OF THE PETITIONER:

5. Learned counsel for the Petitioner submitted as under:

   A. In response to the advertisement issued by the Opposite Parties, the Petitioner has applied for the post of Classical Teacher (Sanskrit). Though she has secured higher mark but was not selected. Whereas the candidates securing less mark than her are selected. In the counter the Opposite Parties have not denied the percentage of mark secured by the Petitioner is more than the percentage of mark secured by Opposite Party No.4. The only stand taken in Para-4 of the counter affidavit that in case of non-availability of trained candidates, untrained candidates shall be considered for engagement as contract teacher and as the Petitioner was untrained he was not selected. But, no such document has been annexed to the counter affidavit to substantiate such stand.

   B. The question arises for consideration whether in absence of any such terms in the advertisement /resolution, the

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Opposite Parties taking the said plea can deny appointment to a more meritorious candidates.

C. As per Resolution 27.10.2014, the eligibility criteria for Classical Teacher (Sanskrit) is *"he/she must have obtained bachelors degree with Sanskrit as one of the optional/Hons subject from a recognized University with minimum 50% marks in aggregate(45% for SC/ST/PH/OBC/SEBC Candidates) with sikshya shastri (Sanskrit) (a course prescribed by NCTE) from a recognized university/institution recognized by NCTEand affiliated to a recognized university or Shastri (Sanskrit) with minimum 50% marks in aggregate (45%for SC/ST/PH/OBC/SEBC Candidates) from a recognized university and Sikshya Shastri (Sanskrit)(a course prescribed by NCTE) from a recognized university/institution recognized by NCTE and affiliated to a recognized university or Acharya (except Jyotischarya and Ayurvedachrya)or Sahityacharya with minimum50% marks in aggregate from a recognized university or Bachelor's degree with Sanskrit as one of the optional/Hons subject from a recognized University with minimum 50% marks in aggregate (45% for SC/ST/ PH/ OBC/ SEBC Candidates) and M.A in Sanskrit with minimum 50% marks in aggregate from a recognized University".*

D. The Petitioner possesses the eligibility criteria as per the said resolution which would be evident from Annexure-2

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series. There is no mention in the advertisement that in case of non-availability of trained Classical Teacher (Sanskrit), untrained candidates shall be engaged for contract teacher. On the other hand, the resolution speaks that untrained candidates shall have to undergo required training within the time line as prescribed by the Government. Further, as per the corrigendum issued on 06.01.2015 by the Opposite Party No.1, the selection in respect of Sanskrit teachers will be done as per the marks obtained in HSC +2, +3 with Sanskrit or Sastri and Sikshyasastri shall be taken into consideration. Similarly as per the resolution dated 27.10.2014 for selection of Sanskrit teachers the percentage mark secured by a candidate in each qualifying examination is to be taken into account. As the Petitioner has the requisite qualification and taking into the percentage of marks in each qualifying examination, her total mark come to 268.0806.

E. The Petitioner is not selected in any relaxed norm but her selection was done as per the terms and conditions of the advertisement and resolutions under Annexure-1 series. There is no stipulation in the resolution with regard to trained and untrained for selection of Classical Teacher. When the Petitioner has secured more mark than the

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Opposite Party No.4, she deserves for appointment. The Petitioner has secured 268.0806 mark whereas the Opposite Party No.4 has secured 250.833 mark. The Petitioner having secured more mark than the Opposite Party No.4 deserves for appointment when there is no distinction between trained and untrained candidates in respect of Classical Teacher as per the Resolution under Annexure-1. Hence, denial of appointment to the Petitioner illegal and in violation of the fundamental rights guaranteed under Article 14 and 16 of the Constitution of India.

III. SUBMISSIONS ON BEHALF OF THE OPPOSITE PARTY NOS.1, 2 & 3:

6. Learned counsel for the State submitted as under:

A. The averments/allegations of the Petitioner is based on misconception and mis-representation of facts and law. The Petitioner is not entitled to get any relief as has been prayed for in the aforesaid Writ Petition.

B. The School and Mass Education Department issued Resolution dated 27.10.2014 prescribing recruitment procedure of teaching staff in Government Secondary Schools. As per the Resolution, in order to eligible for engagement as Classical Teacher (Sanskrit), a candidate must have obtained Acharya or Sahityacharya or M.A. in Sanskrit

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or its equivalent degree from a recognized University/Institution or a Bachelors Degree with Sanskrit as one of the Optional Subject from a recognized University with Sikshaya Sastri (Sanskrit from a recognized University or Sastri (Sanskrit) with Sikshaya Sastri (Sanskrit) from a recognized University. In the said advertisement it was also mentioned that in case of non-availability of trained candidates, untrained candidates shall be considered for engagement as contact teacher.

C. Further, the School and Mass Education Department issued Corrigendum dated 06.01.2015 in order to ensure engagement of qualified trained teachers for providing quality education in the interest of students and modify Para-2, 7, 8 and 9 of the Resolution dated 27.10.2014. In the said corrigendum at Clause-8 for selection of Classical Teacher (Sanskrit) it has been prescribed that while preparing draft merit list the marks obtained in HSC, +2, +3/B.A. with Sanskrit or Sashtry and Sikhya Sashtry shall be taken into consideration.

D. Pursuant to advertisement, the Petitioner having Bachelor Degree with Sanskrit as one of the subject and M.A. in Sanskrit applied for the post of Contract Teacher (Sanskrit) in respect of Khurda district. After preparation of provisional merit list, the name of the Petitioner finds place at Sl. No.682

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with remark that "eligible under relaxed norm". Thereafter, in accordance with time scheduled fixed by the S & ME Department, provisional select list for the post of Classical Teacher in respect of Khurda district was published. In the said list as per advertisement, Unreserved (UR) candidates having training qualification have been selected for engagement as Contract Teacher (Sanskrit). The allegation of the Petitioner that candidates securing less mark than the Petitioner have been selected is totally incorrect and false. In this regard, it is submitted that as per advertisement, 11 posts were earmarked for unreserved candidates. Accordingly, select list of unreserved candidates was prepared taking into account the marks obtained by the candidates in H.S.C., +2, +3/B.A. with Sanskrit or Shastri and Sikhya Shastri. As per the advertisement, all the 11 posts of Contract Teacher (Sanskrit) have been filled up by the selected trained candidates. Therefore, when the Petitioner is an untrained candidate, she cannot claim parity to that of the trained candidates and she cannot say that she is more meritorious than other trained candidates even though she possessed more marks in toto than others. When the Petitioner having lack of training qualification, she is estopped to claim parity/equity with that of the candidates possessing eligibility training qualification prescribed in the

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advertisement. The Opposite Party No.4 (Rachita Pradhan) is an unreserved trained candidate and is eligible as per qualification prescribed in the advertisement. The averments that erroneous selection process, discriminatory treatment and violation of Article 14 and 16 of the Constitution of India does not arise at all. In view of the facts and circumstances, he submitted that the case is not maintainable and being devoid of merit is liable to be dismissed.

IV. CONCLUSION AND ORDER:

7. On the basis of the marks, a common merit list was prepared where the name of the Petitioner finds place at serial No.682. From the said list, it would be evident that the Petitioner has secured 268.0806 marks. Thereafter, a provisional select list for the post of classical teacher in respect of Khurda district was published wherein names of 17 candidates finds place against 21 vacancies. It is profitable to mention here that out 21 vacancies, 11 posts meant for UR, 2 posts for SEBC, 3 post for SC and 5 posts for ST candidates. It would be evident from the select list that candidates securing less mark than the petitioner have been selected whereas the petitioner has not been selected. Learned counsel for the petitioner has contended that when it is the admitted fact that Opposite Party No.4 securing less mark than the Petitioner has been selected, the Petitioner deserves selection for the aforesaid post.

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8. As per Resolution dated 27.10.2014, the eligibility criteria for Classical Teacher (Sanskrit) is *"he/she must have obtained bachelors degree with Sanskrit as one of the optional/Hons subject from a recognized University with minimum 50% marks in aggregate(45% for SC/ST/PH/OBC/SEBC Candidates) with sikshya shastri (Sanskrit) (a course prescribed by NCTE) from a recognized university/institution recognized by NCTEand affiliated to a recognized university or Shastri (Sanskrit) with minimum 50% marks in aggregate (45%for SC/ST/PH/OBC/SEBC Candidates) from a recognized university and Sikshya Shastri (Sanskrit)(a course prescribed by NCTE) from a recognized university/institution recognized by NCTE and affiliated to a recognized university or Acharya (except Jyotischarya and Ayurvedachrya)or Sahityacharya with minimum50% marks in aggregate from a recognized university or Bachelor's degree with Sanskrit as one of the optional/Hons subject from a recognized University with minimum 50% marks in aggregate (45% for SC/ST/ PH/ OBC/ SEBC Candidates) and M.A in Sanskrit with minimum 50% marks in aggregate from a recognized University".*

9. In this regard, the learned counsel for the Opposite Party has clarified that pursuant to advertisement, the Petitioner having Bachelor Degree with Sanskrit as one of the subject and M.A. in Sanskrit applied for the post of Contract Teacher (Sanskrit) in respect of Khurda district. After preparation of provisional

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merit list, the name of the Petitioner finds place at Sl. No.682 with remark that "eligible under relaxed norm". Thereafter, in accordance with time scheduled fixed by the S & ME Department, provisional select list for the post of Classical Teacher in respect of Khurda district was published. In the said list as per advertisement, Unreserved (UR) candidates having training qualification have been selected for engagement as Contract Teacher (Sanskrit). The allegation of the Petitioner that candidates securing less mark than the Petitioner have been selected is totally incorrect and false. In this regard, it is submitted that as per advertisement, 11 posts were earmarked for unreserved candidates. Accordingly, select list of unreserved candidates was prepared taking into account the marks obtained by the candidates in H.S.C., +2, +3/B.A. with Sanskrit or Shastri and Sikhya Shastri. As per the advertisement, all the 11 posts of Contract Teacher (Sanskrit) have been filled up by the selected trained candidates. Therefore, when the Petitioner is an untrained candidate, she cannot claim parity to that of the trained candidates and she cannot say that she is more meritorious than other trained candidates even though she possessed more marks in toto than others. When the Petitioner having lack of training qualification, she is estopped to claim parity/equity with that of the candidates possessing eligibility training qualification prescribed in the advertisement. The

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Opposite Party No.4 (Rachita Pradhan) is an unreserved trained candidate and is eligible as per qualification prescribed in the advertisement.

10. In light of the aforesaid discussion, this Court hereby rejects the prayer of the Petitioner.

11. Accordingly, this Writ Petition is disposed of.

(Dr. S.K. Panigrahi)
Judge

Orissa High Court, Cuttack,
Dated the 3rd July, 2023/B. Jhankar

HIGH COURT
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